

Ravindra Bhushan Singh v. Kanpur Electricity Supply Company

High Court of Judicature at Allahabad · Division Bench · 9 May 2017 · Writ-C No. 19705 of 2017 · **Writ disposed of with liberty to raise the bill dispute under Clause 6.5.**

HEADNOTE

A consumer disputing the correctness of an electricity bill and arrears has a remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court disposed of the writ with liberty to approach the competent authority under that clause, directing the authority to decide any such application in accordance with law within six weeks.

FACTUAL SUMMARY

Ravindra Bhushan Singh approached the Allahabad High Court by a writ petition against Kanpur Electricity Supply Company and another. He disputed the correctness of a bill dated 15 March 2016 issued to him for consumption of electricity, which showed arrears of Rs.1,30,919/-. Counsel for the petitioner and for the respondents were heard. The petition was confined to that billing dispute and the recorded arrears.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute

HOLDING

A consumer disputing the correctness of an electricity bill and recorded arrears has a remedy under Clause 6.5 of the Electricity Supply Code, 2005 before the appropriate authority. The writ was disposed of with liberty to approach that authority, who shall decide any such application in accordance with law within six weeks of the application. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer disputing the correctness of an electricity bill and arrears has a remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL DATED 15 MARCH 2016 AND THE ARREARS OF RS.1,30,919/-
Left to the competent authority under Clause 6.5 of the Supply Code. ¶ 1